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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW AND JUSTICE

Islamabad, the 6th January, 2017

No. F. 2(1)/2017-Pub.—The following Ordinance promulgated by the President is hereby published for general information:—

ORDINANCE NO. I OF 2017

AN

ORDINANCE

further to amend the National School of Public Policy Ordinance, 2002

WHEREAS it is expedient further to amend the National School of Public Policy Ordinance, 2002 (XCIX of 2002), for the purposes hereinafter appearing;

AND WHEREAS the National Assembly and Senate are not in session;

AND WHEREAS the President of the Islamic Republic of Pakistan is satisfied that circumstances exist which render it necessary to take immediate action;

(1)

Price: Rs. 5.00

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance, namely:—

1. **Short title and commencement.**—(1) This Ordinance may be called the National School of Public Policy (Amendment) Ordinance, 2016.

(2) It shall come into force at once.

2. **Amendment of section 2, Ordinance XCIX of 2002.**—In the National School of Public Policy Ordinance, 2002 (XCIX), hereinafter called as the said Ordinance, in section 2,—

(a) after clause (a), the following new clause shall be inserted, namely:—

“(aa) “directing staff” means the academic supervising faculty including chief instructor appointed or posted under sub-section (2) of section 11;” and

(b) in clause (c), after the word “by” the words “rules or” shall be inserted.

3. **Amendment of section 4, Ordinance XCIX of 2002.**—In the said Ordinance, in section 4,—

(a) in clause (a), after the expression “tuition,” the expression “higher education,” shall be inserted; and

(b) for clause (f), the following shall be substituted, namely:—

“(f) to provide for in-service training to the Federal Government’s officials and such officials of the Provincial Governments, Governments of Azad Jammu and Kashmir and Gilgit-Baltistan nominated by respective Governments and selected by the Establishment Division;”.

4. **Amendment of section 5, Ordinance XCIX of 2002.**—In the said Ordinance, in section 5,—

(a) in sub-section (2), after clause (e), the following new clause shall be inserted, namely:—

“(ea) Chief Secretaries of the Provinces”; and

- (b) for sub-section (4) the following shall be substituted, namely:—

“(4) A member, other than an *ex-officio* member, shall hold office for a term of three years and shall be eligible for re-appointment for one more term of three years.”.

5. Amendment of section 6, Ordinance XCIX of 2002.—In the said Ordinance, in section 6,—

- (a) in sub-section (1), after the word “of”, occurring for the second time, the words “inefficiency or” shall be inserted;

- (b) for sub-section (2), the following shall be substituted, namely:—

“(2) If there are grounds to proceed against a member, including the Rector under sub-section (1), the Prime Minister shall order an enquiry into the matter as may be prescribed.”; and

- (c) for sub-section (3) the following shall be substituted, namely:—

“(3) If after inquiry into the matter, the Rector or member, as the case may be, is found guilty of inefficiency or misconduct or found to be incapable of performing the duties of his office by reason of physical or mental incapacity, the Prime Minister may remove the Rector or the member from office.”.

6. Amendment of section 7, Ordinance XCIX of 2002.—In the said Ordinance, in section 7,—

- (a) in clause (a), after the word “employees”, the words “as may be prescribed” shall be inserted;

- (b) for clause (c), the following shall be substituted, namely:—

“(c) declare, with approval of the Federal Government, any training institution, administered and funded by the Federal Government, as a constituent unit of the School.”; and

- (c) in clause (e), after the word “contributions” the expression “in accordance with the existing law or, as the case may be, policy of the Federal Government” shall be inserted.

7. **Amendment of section 9, Ordinance XCIX of 2002.**—In the said Ordinance, in section 9,—

(a) for sub-section (1) the following shall be substituted, namely:—

“(1) The Rector shall be appointed by the Prime Minister on recommendations of the Board from amongst a panel of at least three persons on such terms and conditions as may be prescribed.”;

(b) in sub-section (2),—

(i) for clause (a) the following shall be substituted, namely:—

“(a) be appointed for one non-extendable term of four years, provided that the Rector shall cease to hold office on attaining the age of sixty-five years or expiry of the term, whichever is earlier;” and

(ii) in clause (b), the words “and shall serve during the pleasure of the Board” shall be omitted.

8. **Amendment of section 11, Ordinance XCIX of 2002.**—In the said Ordinance, for section 11 the following shall be substituted, namely:—

“11. *Appointments.*—(1) All appointments in the School shall be made on such terms and conditions as may be prescribed.

(2) The directing staff shall be appointed or, as the case may be, posted by the Federal Government in Management Pay Scales *i.e.* MP-I, MP-II or MP-III or such other pay scales as may be prescribed through rules:

Provided that fifty percent of the directing staff shall be appointed from amongst the persons from private sector or academia:

Provided further that where a retired civil servant is appointed under the first proviso he shall not be appointed unless he fulfills the criteria required.”.

9. **Amendment of section 12, Ordinance XCIX of 2002.**—In the said Ordinance, in section 12, in sub-section (2), for the word “there” the expression “Subject to clause (e) of section 7 there” shall be inserted.

10. **Amendment of section 15, Ordinance XCIX of 2002.**—In the said Ordinance, in section 15, in sub-section (2), after the word “prescribed” the words “through regulations” shall be inserted.

11. **Insertion of new section, Ordinance XCIX of 2002.**—In the said Ordinance, after section 16, the following new section shall be inserted, namely:—

“16A. *Power to make rules.*—The Federal Government may, by notification in the official Gazette, make rules to carry out purposes of this Ordinance.”

12. **Amendment of section 17, Ordinance XCIX of 2002.**—In the said Ordinance, in section 17, in sub-section (2), after clause (c), the following new clause shall be inserted, namely:—

“(ca) conduct of trainings, evaluation criteria and other matters allied to trainings;”.

13. **Amendment of section 18, Ordinance XCIX of 2002.**—In the said Ordinance, in section 18,—

(a) in clause (a),—

(i) after the word “Lahore”, occurring for the first time, for the comma the word “and” shall be substituted; and

(ii) the expression “and Civil Services Academy (DMG Campus), Lahore,” shall be omitted;

(b) after clause (a), amended as aforesaid, the following new clause shall be inserted, namely:—

“(aa) the Civil Services Academy and its allied units shall not be constituent units of the School;”.

14. **Amendment of section 19, Ordinance XCIX of 2002.**—In the said Ordinance, for section 19 the following shall be substituted, namely:—

“19. *Removal of difficulties.*—For a period of two years from the coming into force of National School of Public Policy (Amendment) Ordinance, 2016, if any difficulty arises in giving effect to any of its provisions, the Federal Government may give such directions, not inconsistent with the provision of this Ordinance, as it may consider necessary for the removal of such difficulty.”.

MAMNOON HUSSAIN,
President.

KARAMAT HUSSAIN NIAZI,
Secretary.